

Court No. - 3

Case :- WRIT - C No. - 25294 of 2021

Petitioner :- Tarachand

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Yadav

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

As prayed, put up this matter, as fresh, on
18.11.2021.

Order Date :- 21.10.2021

Puspendra

Court No. - 3

Case :- WRIT - C No. - 25294 of 2021

Petitioner :- Tarachand

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Yadav

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Syed Aftab Husain Rizvi,J.

None appears for the petitioner.

Put up as a fresh case before appropriate bench on 08.12.2021.

Order Date :- 24.11.2021

C. MANI

Court No. - 3

Case :- WRIT - C No. - 25294 of 2021

Petitioner :- Tarachand

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Yadav

Counsel for Respondent :- C.S.C.,Rajesh Yadav

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Dr. Yogendra Kumar Srivastava,J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and learned counsel for the respondent nos. 2 and 3.

This writ petition has been filed praying for the following reliefs :-

"(A) Issue a writ, order or direction in the nature of certiorari calling for the records and quash the impugned recovery certificate dated 11.12.2020 (annexure no. 1) issued by the respondent no. 2.

(B) Issue a writ, order or direction in the nature of certiorari calling for the records and quash the impugned provisional assessment notice dated 15.10.2020 (annexure no. 3) issued by the respondent no. 2.

(C) Issue a writ, order or direction in the nature of mandamus directing and commanding the respondents not to conduct any recovery action against the petitioner without following the procedure established by law.

(D) Issue any other writ, order or direction in favour of the petitioner as this Hon'ble Court may deem fit and proper under the facts and circumstances of the case, and

(E) Award the costs of the writ petition in favour of the petitioner."

Learned counsel for the petitioner submits that without any final assessment order and demand notice, the impugned recovery certificate has been forwarded by the respondent no. 2 to the respondent no. 4. It is submitted that the impugned recovery certificate has been issued in breach of principles of natural justice.

Learned counsel for the respondent nos. 2 and 3 submits that the petitioner has a remedy under para 6.5 of the U.P. Electricity Supply Code, 2005, and therefore the petitioner may submit a detailed objection before the respondent no. 2 which shall be considered and decided by him within a time bound period and till then the impugned recovery certificate shall not be pressed.

In view of the statement made by learned counsel for the respondent nos. 2 and 3, this writ petition is disposed of giving liberty to the petitioner to submit an objection/representation before the respondent no. 2 under para 6.5 of the Electricity Supply Code, 2005 within four weeks from today along with certified copy of this order and in the event, such objection/representation is submitted before the respondent no. 2, then the same shall be decided by the respondent no. 2 in accordance with law, within next four weeks after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till decision is taken by the respondent no. 2 on the objection/representation of the petitioner, the impugned recovery certificate dated 11.12.2020 shall be kept in abeyance.

Order Date :- 8.12.2021

Pratima

(Dr.Y.K.Srivastava,J.) (Surya Prakash Kesarwani,J.)